

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUCR059659: PERLA MAGENO vs SUB ZERO FRANCHISING, INC, A UTAH CORPORATION;

08/31/2026 in Department 21

Motion to Quash Service of Summons

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Sub Zero Franchising, Inc’s Motion Quash Service of Summons (*Opposed*)

Tentative Ruling: Defendant’s Motion to Quash Service of Summons is DENIED. Plaintiffs have established specific jurisdiction over Defendant Sub Zero, Inc, a Utah Corporation.

Plaintiff is to give notice within two (2) court days.

Background: On January 9, 2026, Perla Mageno (“Plaintiff”) filed suit against Sub Zero Franchising, Inc, a Utah Corporation (“Defendants”) based on Defendant’s alleged failure to design, construct, maintain, and operate a website compliant with the Unruh Civil Rights Act (Civ. Code, §51, et seq.)

No trial date has been set.

Discussion:

Applicable Law – Specific Jurisdiction

California courts may exercise personal jurisdiction on any basis not inconsistent with the state or federal Constitution. (Code Civ. Proc. § 410.10.)

A nonresident defendant is subject to specific jurisdiction if three requirements are met: (1) the defendant purposefully availed itself of the benefits of conducting activities in the forum; (2) the controversy arises out of or relates to the defendant’s forum contacts; and (3) the exercise of jurisdiction comports with fair play and substantial justice. (*Vons Companies, Inc. v. Seabest*

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Foods, Inc. (1996) 14 Cal.4th 434, 446-447; *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472.)

Plaintiff bears the initial burden of demonstrating facts justifying the exercise of jurisdiction. (*Vons, supra*, 14 Cal.4th at p. 449.) Plaintiff must carry that burden by a preponderance of the evidence, and must do so through competent evidence in affidavits and authenticated documentary evidence. (*Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-1233.)

Once Plaintiff meets the burden, the burden shifts to Defendant to present a “compelling case” that the exercise of jurisdiction would be unreasonable. (*Burger King, supra*, 471 U.S. at p. 477; *Vons, supra*, 14 Cal.4th at p. 449; *Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.)

1. Contacts

Defendant concedes Plaintiff established the necessary contacts. Accordingly, the court will not address that legal issue.

2. Substantial Connection

Regarding the substantial connection requirement, a substantial connection must exist between the defendant’s forum contacts and the plaintiff’s claim. The claim need not arise directly from the contacts. (*Vons, supra*, 14 Cal.4th at pp. 452-453.) The United States Supreme Court has also held that the phrase “arise out of or relate to” does not require strict causation. Where a defendant serves a market in the forum for the very product or service at issue, claims by forum residents related to that market activity satisfy the requirement. (*Ford Motor Co. v. Montana Eighth Judicial Dist. Court* (2021) 592 U.S. 351, 362-363.)

The court in *Pavlovich v. Superior Ct.* (2002) 29 Cal.4th 262 (*Pavlovich*), addressed the question of specific jurisdiction through internet use:

Although we have never considered the scope of personal jurisdiction based solely on Internet use, other courts have considered this issue, and most have adopted a sliding scale analysis. “At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. [Citation.] At the opposite end are situations where a defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. [Citation.] The middle ground is occupied by interactive Web sites where a user

can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site.” (*Zippo Mfg. Co. v. Zippo Dot Com, Inc.* (W.D.Pa. 1997) 952 F.Supp. 1119, 1124.)

(*Pavlovich v. Superior Ct.*, *supra*, 29 Cal. 4th at 274.)

The court in *Pavlovich* concluded the defendant’s website only posted information and had no interactive features, and no evidence was presented that suggested its website targeted California. The *Pavlovich* court added, “Creating a site, like placing a product into the stream of commerce, may be felt nationwide - or even worldwide - but, without more, it is not an act purposefully directed toward the forum state.” (*Cybersell*, at p. 418, quoting *Bensusan Restaurant Corp. v. King* (S.D.N.Y. 1996) 937 F.Supp. 295, 301, *affd.* (2d Cir. 1997) 126 F.3d 25.) Otherwise, “personal jurisdiction in Internet-related cases would almost always be found in any forum in the country.” (*GTE New Media Services Inc. v. BellSouth Corp.* (D.C. Cir. 2000) 199 F.3d 1343, 1350.) Such a result would “vitiate long-held and inviolate principles of” personal jurisdiction. (*Ibid.*) (*Pavlovich v. Superior Ct.*, *supra*, 29 Cal. 4th at 274-75.)

3. Fairness and Substantial Justice

The 'minimum contacts' doctrine provides no mechanical yardstick. Rather, personal jurisdiction depends on the facts of each case ... the test being whether, under those facts, California has a sufficient *relationship with the defendant and the litigation* to make it *reasonable* ('fair play') to require him or her to defend the action in California courts. The following factors will be considered:

- The *extent to which the lawsuit relates to defendant's activities* or contacts with California;
- The availability of evidence, and the location of witnesses;
- The availability of an alternative forum in which the claim could be litigated (defendant's amenability to suit elsewhere);
- The relative costs and burdens to the litigants of bringing or defending the action in California rather than elsewhere; and
- Any state policy in providing a forum for this particular litigation (e.g., protection of California residents, or assuring applicability of California law). [See *World-Wide Volkswagen Corp. v. Woodson* (1980) 444 US 286, 292, 100 S.Ct. 559, 564; and *Fisher Governor Co. v. Sup.Ct.* (1959) 53 C2d 222, 225-226, 1 CR 1, 3-4]

Analysis

1. Reliability of Defendant’s Declarations

The accuracy of Defendant’s first declaration, Hancock Decl., was refuted by the exhibits presented by Plaintiff. Defendant’s failure to convincingly address the inaccuracies of the first declaration diminishes the credibility of both declarations.

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As an example of Defendant's failure to address the inaccuracies, Mr. Hancock declared the franchise relationship with the Simi Valley location was terminated and Defendant's website is "informational in nature" and "[Defendant] does not process purchases, accept orders, or conduct e-commerce transactions" (Hancock Decl. p. 2, par. 10). However, Plaintiff's exhibits show that effective August 18, 2026, the Simi Valley location was open and operating under Defendant's brand and log, and contrary to Mr. Hancock's declaration, that the website processes purchases and orders.

Defendant failed to adequately address the incorrect information it provided. Rather, in the second declaration, Mr. Hancock states that the Simi Valley franchise registration expired in October 2025. This information does not support his initial claim that the Simi Valley location was closed, or the information provided by Plaintiff that it in fact remained open. As a second example, in the second declaration Mr. Hancock included information such that Defendant's website does not list any franchisee's specific menu or prices and does not receive a consumer's retail payment for transactions placed through the franchises. (Hancock Supp. Decl., p. 2, par. 4, 6, & 11.) However, this does not address the information Plaintiff presented which was that contrary to the first declaration, Defendant's website is available to initiate the process of ordering from the Simi Valley location and that Defendant's website processes its rewards program for California consumers.

2. Substantial Connection

Plaintiff established by a preponderance of the evidence that Defendant's forum contacts arise and relate to the cause of action. Defendant's website was not solely informational. Rather, it presents location information about the Simi Valley location and invites potential California consumers to use Defendant's website to make orders and purchase from the Simi Valley location. Further, Defendant's website processes Defendant's rewards program which, by Defendant's own acknowledgement, requires a customer to make an in-store purchase before being eligible for Defendant's rewards program. In consideration *Pavlovich*, Defendant's website activity solicited toward California consumers is not passive, but rather rises to the level of moderate.

3. Fairness and Substantial Justice

Defendant has not established that the court's exercising of said jurisdiction would fail to comport with fair play and substantial justice. The lawsuit relates to Defendant's contacts with California. Plaintiff alleges she attempted to utilize Defendant's website to access information about the Simi Valley location to ultimately visit the location in-person but could not do so because of the website's lack of accessibility.

Defendant did not allege any challenges with obtaining necessary evidence or witnesses to present its defense. Nor did Defendant suggest an alternative forum or identify any substantial or significant costs Defendant might incur by defending this action in California. Further, it must also be considered that as recently as March 2025, Defendant has made efforts to expand its business presence in California as can be seen by Defendant's Uniform Franchise Registration

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Application, and by its own admission has recently expanded its presence in California through its application. (Opposition, Exh. E, pp. 52-54.) Finally, this litigation is consistent with the state policy identified in the UCRA, which mandates the elimination of discrimination against individuals with disabilities.

Disposition

Defendant's Motion to Quash Service of Summons is DENIED. Plaintiff established this court has specific jurisdiction over Defendant Sub Zero, Inc, a Utah Corporation. Defendant failed to establish the court's exercising of said jurisdiction would fail to comport with fair play and substantial justice.

Defendant shall give notice.